



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 5-11-2026
BY: 
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SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 40TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON MAY 5
2026

PRESENT:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member/ Acting Municipal Vice- Mayor/ Presiding Officer
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Michael C. Escuyos		SB Member
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ABSENT:

Hon. Jane V. Plaza		Municipal Vice- Mayor/ Acting Municipal Mayor
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ORDINANCE NO. 54
Series of 2026

**“AN ORDINANCE ENACTING THE OMNIBUS TOURISM CODE OF THE MUNICIPALITY OF CARMEN,
PROVINCE OF SURIGAO DEL SUR”**

Author: Hon. Daniel A. Tejol

Enacted: All Members Present

EXPLANATORY NOTE

Tourism has emerged as one of the most important drivers of local economic growth, employment generation, cultural promotion and environmental conservation in many Local Government Units in the Philippines. Recognizing the municipality’s natural attractions, cultural heritage and community resources, it is imperative for the Municipality of Carmen, Surigao del Sur to enact a comprehensive policy framework that will guide the sustainable development, promotion, regulation and management of tourism activities within its jurisdiction.



The Omnibus Tourism Code of the Municipality of Carmen, Surigao del Sur seeks to consolidate and/or define in general sense all tourism-related policies, regulations, standards and institutional mechanisms of the Local Government in order to ensure coordinated tourism development. The Code aims to promote responsible tourism, encourage private sector participation, protect the environment and cultural heritage and ensure that tourism development benefits local communities.

This Code is anchored on several national laws and policy frameworks that empower Local Government Units to regulate and promote tourism development within their territorial jurisdiction, as follows:

Republic Act No. 7160- Local Government Code of 1991. This law grants Local Government Units the authority to enact ordinances necessary for the promotion of the general welfare within their jurisdiction. It empowers municipalities to regulate businesses, protect the environment and promote economic development. The Code also authorizes LGUs to implement programs and policies for tourism development and local economic growth.

Republic Act No. 9593- The Tourism Act of 2009. This law declares tourism as an important component of national economic development and encourages sustainable tourism development. It specifically mandates Local Government Units to prepare and implement tourism development plans, enforce standards for tourism enterprises and collaborate with the Department of Tourism and Private Stakeholders in developing tourism destinations.

Republic Act No. 9003- This law requires proper Solid Waste Management and Environmental protection measures, which are essential in maintaining the cleanliness and sustainability of tourism destinations.

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

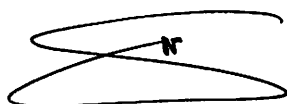
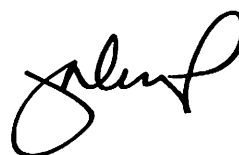
CHAPTER I GENERAL PROVISIONS

Section 1. TITLE- This Code shall be known as the Omnibus Tourism Code of the Municipality of Carmen, Surigao del Sur.

Section 2. COVERAGE- The provisions of this Code shall cover the tourist destinations such as Hubason River Resort and Adventure Trail, Camp Balinganga, Carmen Mangrove Park, Sua Cool Spring, Bamboo Plantation, Other Potential Tourist Spots for future development such as Napinajong Falls, Bikayan Falls, Naduyog Falls, Nabuongan Falls, Maraat Falls, Agasan Falls, Gacub Caves, Bayabas Underground River, Tabinas Falls, Cultural Heritage Tourism, Environmental Protection, Tourist/Trek Guides, Homestay, Souvenir Shops, travel operations and food services.

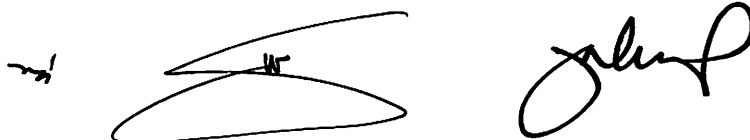
Section 3. DEFINITION OF TERMS- For the purpose of this Ordinance, the following terms and phrase shall be understood in the sense indicated hereunder:

- a. Omnibus- Legislative measure covering many different items.
- b. Tourism Master Plan- is a ten (10) year Comprehensive Development framework of the Local Government Unit of Carmen, Surigao del Sur that guides the planning, management, and sustainable development of tourism resources, programs and projects within the municipality. It serves as a roadmap for promoting tourism, protecting cultural assets and improving local economic opportunities.
- c. Municipal Tourism Council- refers to a local advisory body composed of representatives from the Municipal Government, tourism stakeholders, and community sectors that helps formulate policies, recommend programs, coordinate tourism development initiatives,

and support the promotion and sustainable management of tourism in the Municipality in accordance with national tourism policies.

- d. Tourism Related Establishments (TREs)- refer to businesses or facilities that support and provide services connected to tourism activities, such as accommodations, food services, transportation, travel operations, entertainment and other services used by tourists.
- e. Primary Tourism-Related Establishments (Primary TREs)- refer to businesses that directly provide core tourism services and facilities to tourists, such as accommodation, travel, transportation and tour services.
- f. Secondary Tourism-Related Establishments (Secondary TREs)- refer to businesses that indirectly support tourism by offering goods and services commonly used by tourists, such as restaurants and food establishments, retail shops and souvenir stores, spas and wellness centers, and entertainment and recreational facilities.
- g. Tourists Spots and Destinations- areas/places designated by the Local Government Unit of Carmen as tourist destinations of the municipality.
- h. Mangrove Visits- refer to travels/visits within the mangroves area in order to learn the habitation of the mangroves.
- i. Mountain Adventure- refers to activity of trekking in the mountains for exercise and enjoyment and to see the nature's wonder.
- j. Tourist/Trek Guide- refers to a person who guides the tourists in their destinations to see the beauty spots of the town and give them the best of their experience.
- k. Foreign Tourist- refers to citizens from other countries who come to visit our locality.
- l. Domestic/Local Tourist- refers to persons coming from different places of our country.
- m. Stall- refers to an open compartment of an area designated for the sale or display of commodities or food stuffs.
- n. Food Establishment- refers to an establishment where food or drinks are manufactured, processed, stored, sold or served.
- o. Food Handler- this term includes all persons or personnel who directly handle, prepare, or serve food, drinks and or ice or who come in contact with any eating or cooking utensil and/or food vending machines. Among such persons or personnel are: cooks, assistant cooks, waiters/waitresses, dishwashers, busboys, etc.
- p. Local Food Caterers- refer to individuals or businesses in a community that prepare and supply food for events or gatherings.
- q. Homestay Operator- an owner of a private house who operates a lodging house for transient visitors/tourists to stay for a number of days.
- r. Hotel- shall mean an accommodation that provides lodging for travelers and tourists. It offers facilities and services such as reception, guest rooms with private facilities, and dining services for a fee.
- s. Resort- shall mean an accommodation facility located in a relaxing or natural environment that provides lodging, dining, and recreational facilities for tourists and guests.
- t. Tourist Inn- shall mean a lodging establishment that caters mainly to transient guests but usually more limited facilities and services than hotels.



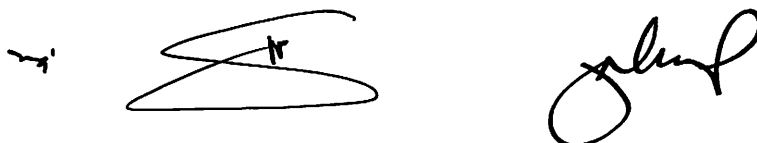
- u. Apartelle (Apartment Hotel)- refer to a building with several furnished to semi-furnished apartments rented to tourists or travelers for short or long stays, providing basic hotel-like services.
- v. Mabuhay Accommodation- a small or budget accommodation establishments such as tourist inns, pension houses, motels, bed-and-breakfasts, hostels, guest houses, and similar lodging facilities recognized by the Department of Tourism.

CHAPTER II

HUBASON RIVER RESORT AND ADVENTURE TRAIL

Section 4. REGULATIONS FOR THE USE OF THE HUBASON RIVER RESORT AND ADVENTURE TRAIL AND ITS FACILITIES as embodied in Ordinance No. 6, Series of 2025, entitled, "AN ORDINANCE ESTABLISHING THE RULES AND REGULATIONS GOVERNING THE OPERATIONS OF THE HUBASON RIVER RESORT AND ADVENTURE TRAIL AND PRESCRIBING CHARGES THEREOF."

- a) No person, natural or juridical, shall construct, install, or operate any building structure, or facility within the zone that is incompatible with its tourism and environmental protection purposes, including but not limited to:
 - 1. Industrial facilities
 - 2. Commercial establishments that obstruct public access to the river
 - 3. Structures that alter the river's natural flow or damage its banks
 - 4. Any structure built within twenty (20) meters for titled lands and forty (40) meters for forestlands of the water easements
- b) The following are considered unsanitary, destructive and prohibitive acts against the use of the river resort, its surroundings and facilities therein:
 - 1. Bringing of pets inside the premises of Hubason River Resort and Adventure Trail
 - 2. Graffiti writings on walls of its facilities
 - 3. Improper use of comfort rooms by not flushing after using
 - 4. Doing laundry in the river
 - 5. Using shampoos and bath soaps in the river
 - 6. Bringing food into the river
 - 7. Throwing of empty bottles within the premises
 - 8. Cutting, gathering, or destruction of trees, shrubs and other vegetation in the area
 - 9. Dumping of solid waste, sewage or toxic materials
 - 10. Using destructive fishing practices or alteration of riverbanks
- c) Left over and other waste by picnic goers should be places in the appropriate trash bags or in any appropriate garbage cans provided by the management.



- d) Vehicles and motorcycles shall be parked in the designated parking area.
- e) The resort shall be opened at 8:00 A.M. and shall be closed at 5:00 P.M.
- f) Guests are required to write their names, age and address in the logbook provided at the reception for a proper manifest of daily guests which shall serve as the basis of Statistical Reports to the Department of Tourism.
- g) Guests shall pay a corresponding entrance fee otherwise he/she will be denied entry.
- h) Guests who wish to use the facilities such as pavilions, cottages, umbrellas shall make arrangements with the receptionist at the entrance and pay the prescribed fees.
- i) Guests shall only cook or grill their food at the designated grilling stations.
- j) Smoking shall be done at the designated areas only.

Section 5. ADVENTURE TRAIL- This covers the area within and around Hubason River Resort extending to the 2.2 kilometers stretch of the river trail and culminating at the waterfalls area. It takes more or less one (1) hour of upstream trekking the river trail to reach the waterfalls. The 2-km. stretch of the trail offers picturesque views and identified swimming or activity areas for the guests.

The LGU identified and conceptualized what the area can offer, which are classified into two categories: Point of Interests (POIs) and Landmarks (LMs). Point of Interests are areas identified along the river trail where activities are available for the trekkers, as follows:

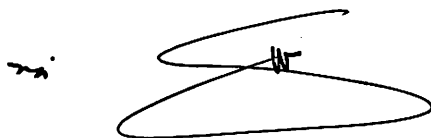
- 1) **Tarzan Swing-** Immediately after the start of the river trekking, in the first river crossing a few meters from the main park, the guest will encounter on the right side a rock solid wall with well rooted trees on top when facing upstream. Often can see locals anchor the vines on trees to swing above the water and plunge into the deeper part of the river. This spot can be developed into an actual activity area for swing and plunge (Tarzan Swing). This must be supported by appropriate infrastructures needed for the activity. An easy access boardwalk or stairs installed on the side of the wall going to the Tarzan platform for the exciting swing and plunge.
- 2) **Tube N' Dip-** At 1.2 kms. from Hubason River Resort, the tourist can see these rapids filled section of the river. This 150-meters stretch of the river is fit for a mini water tubing activity. An estimated 10-minute ride from the upstream starting point to the downstream part of this section can be an exhilarating experience. Topping off the fun and excitement, guests can relax by dipping on the pool of water to cool down.
- 3) **Junction Area-** Around 250 meters upstream from the starting point of the proposed tubing area, guest will observe an increasing number of large boulders and encounter the most noticeable landmark of the trail where the two river channels merge. Available spots for swimming or dipping and some dry areas with sand and pebbles.
- 4) **Canyoning-** At 2.2. km from the resort is the main hub of this eco-tourism river trail attraction, the waterfalls section. This 4th P.O.I. spot offers the 20-foothigh waterfalls, several water tubs in and around the plunge pool section, and as the guest ascends to the top of the falls, he/she can appreciate an undefiled environment. Canyoning, also known as waterfall rappelling, is the main activity of this area. With the rappelling platform to be built on the side of the overhang, the guests can directly rappel down to the plunge pool.
- 5) **Datu House-** It is a shack situated 600 meters from the resort. On its side is a small open cottage called "Ulingan," where the local dwellers process dried coconut shells into charcoal. This is the only house the guest can encounter along the whole stretch of the river trail.

- 6) **Rock Garden-** It is a carpet of rocks paving the trail for the trekkers along the river. Species of perennial rhizomatous grass native to tropical and subtropical countries bordered the trail track. A picturesque site for selfies and groupies. It is estimated to be around 800meters from the resort area along the river trail. With pools of water, a lovely place for trekkers to rest, wash and even swim to cool down from along hike.
- 7) **Water Source-** It will help quench one’s thirst. This is a small tributary where, both locals and trekkers draw free flowing spring water from the forest for drinking.
- 8) **Tres Marias-** Tres Marias got its name from the three (3) boulders in this area that can hardly be missed. Located a few meters from the “Junction.” It would be of great help for the trekkers to establish bolted handrails to assist them in this relatively technical section.
- 9) **Tin-away-** Tin-away drench, from the word tin-aw (meaning clear), is another pool of water with an estimated depth of five (5) feet. This is a favorable place for swimming and dipping. A place to rest and prepare for the final climatic trek to the main falls.
- 10) **Double Drop-** As the name implies, is a challenging path where one can see cascades of flowing swift water along the trail. Once dipped into its tubs, tourist will experience a jacuzzi-like treatment. Adding bolted handrails would be a good fixture to keep trekkers safe throughout this section.
- 11) **Rockshow-** This huge “instagrammable” rock called Rockshow is a “must-climb” spot where one can see the final stretch of the river trail towards the falls area. From this rock, you get a good glimpse of the totality of this nature trek: the water flowing through the rocks and the trees that line around, protecting the stability of this scenery. Handrails or trail assist can also be helpful in passing this area.

CHAPTER III
CARMEN MANGROVE PARK

Section 6. CARMEN MANGROVE PARK- Carmen Mangrove Park has two parts: namely; the Mangrove Forest which covers an estimated area of three and a half hectares (3.5 has.) to be declared as sanctuary and protected area serving as a breeding ground for shrimps, crabs and other local fish species, and Recreational area which includes the river. It is best for swimming, boating, rafting and other physical water-based sports and activities.

- 1. The operations of Carmen Mangrove Park shall be under the direct control and supervision of the Local Government Unit of Carmen.
- 2. The Mangrove Forest shall be preserved for future mangrove visits and educational tours.
- 3. Guests who wish to use the facilities such as pavilions and cottages shall make arrangements with the Municipal Treasurer’s Office and pay the prescribed fee.
- 4. As embodied in the 10-year Municipal Tourism Plan, an estimated area of 1.4495 hectares is designated for the construction of fully-furnished infrastructure facilities to include a pavilion to cater the needs of holding large meetings or similar activities and construction of cottages that will serve as rest areas for visitors and guests who would spend a day for recreation and relaxation.
- 5. Water activities such as swimming, rafting and kayaking will also be introduced as soon as the operations become full-blown.



**CHAPTER IV
CAMP BALINGANGA**

Section 7. THE CAMP BALINGANGA- is an agro-eco Tourist destination. Its main attraction is the Balinganga River located at the heart of the forest in Barangay Cancavan streamlining the verdant and sprawling mountain. It has a crystal-clear water and a cool and refreshing ambience all around.

Part of Camp Balinganga, particularly with an area of twenty (20) hectares shall be utilized as “Demo-Farm” of the Carmen Sustainable Agro-Forestry and Agro-Industrial Development (CaSAAD) Program. It is a development initiative of the municipality aimed at strengthening agriculture and agro-industry in the area.

Further, the LGU aims to develop Camp Balinganga into an ideal camping site in the very near future making the campers experience the adventures they have not tried in their whole life.

**CHAPTER V
SUA COOL SPRING**

Section 8. THE SUA COOL SPRING- is located at Barangay Esperanza which the latter is also developing it as a tourist destination. Its distance is estimated at 6.22 kilometers from the junction national highway of Barangay Cancavan to the site.

It started its operations under the management and control of the Barangay Council of Barangay Esperanza subject to the laws, rules and regulations of the Department of Tourism through the Municipal Tourism Office.

**CHAPTER VI
BAMBOO PLANTATION**

Section 9. THE BAMBOO PLANTATION in the Municipality of Carmen, Surigao del Sur is an agro-forestry initiative that supports environmental conservation, sustainable livelihood and local economic development.

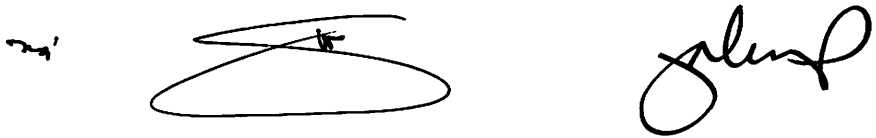
The plantation consists of fifteen (15) cultivated bamboo species, more or less, grown at Sitio Mahambong Barangay Poblacion. It aims to restore degraded land, prevent soil erosion and improve ecological balance.

Aside from environmental benefits, the bamboo plantation also provides livelihood opportunities for local communities through bamboo propagation, planting and maintenance. The harvested bamboo can be used for construction materials, handicrafts, furniture and other bamboo-based products, which can support local industries and community enterprises.

**CHAPTER VII
OTHER POTENTIAL TOURIST SPOTS FOR FUTURE DEVELOPMENT**

Section 10. AS EMBODIED IN THE 10-YEARMUNICIPAL TOURISM PLAN, the following are potential tourist attractions for future development, to wit:

- 1) Napinajong Falls- located more or less twelve (12) kilometers from Sitio Gacub. This falls got its name from the shape of an umbrella. Its thick covers and forests are home to Philippine Eagles many years ago.
- 2) Bikayan Falls- a one-hour hike from Sitio Gacub will bring us to this two-layered falls. It has hidden caves waiting to be explored.



- 3) Naduyog Falls- a three-layered falls which is a tributary to the Agutajan River. The first falls measures 60 ft. in height, the second measures 40 ft. high and the last one measures 20 ft. high.
- 4) Nabuongan Falls- the name refers to “nabuak na tibud.” Located at the Agasan River and measures 20 ft. high.
- 5) Maraat Falls- found at the Maraat River standing majestically at an estimated 500 meters high. Maraat is a Mamanua term for a bad location or “mayaot na plastada.” Discovered by the Manobo tribes of the Quillano ancestors. This very high falls, covers a secret cathedral cave used by Japanese soldiers as hideout during the 2nd World War. This falls is something to be an excitement by the adventurous tourists.
- 6) Agasan Falls- located near the proposed Aksam-Cabadbaran highway, this falls would likely be a tourist attraction in the near future with its possible accessibility.
- 7) Gacub Caves- Gacub means a protruding stone that can be used as shelter. Gacub has several unexplored caves running as far as twenty (20) kilometers long.
- 8) Bayabas Underground River- just nine (9) kilometers away from Sitio Gacub, this underground river runs one (1) kilometer long and exists through Gacub River.
- 9) Tabinas Falls- a more accessible falls within the municipality which is located in Sitio Tabinas of Barangay Hinapoyan. It is nature at its best.
- 10) Other Potential Tourist Spots

CHAPTER VIII CULTURE AND HERITAGE TOURISM

Section 11. FESTIVALS AND FIESTAS- Fiestas are common and regular tourism attractions. Poblacion, Carmen celebrates its first patronal town fiesta every 30th day of April in honor of Saint Vincent Ferrer followed by a second Patronal Fiesta every last Sunday of October in honor of Our Lady of Carmel or Carmen to which some historians attribute the name of the municipality. Other barangays have their fiestas also during the months of April and May, making the summer more fun- filled with tourists and visitors.

Section 12. MAKONG KAUMAHAN- “Makong Kaumahan” is a Carmenanon term for a vast farm land. This is a celebration of thanksgiving to the Almighty for the bountiful harvests from the big agricultural lands of Carmen. Done during the Araw ng Carmen celebration every November 17. This event features meaningful religious activities, grand street dancing, stage performances, indigenous games, agri-trade fair and Search for Mutja ng Kaumahan, among others.

Section 13. THE ITIK-ITIK CABAKHAWAN (CARMEN, SURIGAO DEL SUR)- This is the folkdance owned and originated in the Municipality of Carmen which is also one of the highlights during the celebration of the Araw ng Carmen.

Section 14. KAHIMUNAN- This is a festival or a celebration among the “Tribo Katawhan” or Indigenous Peoples living in the ancestral domains of the municipality in the hinterlands of Hinapoyan, Gacub, Tabinas, Tugopon, Bayabas and Hubason areas.

This activity showcases their culture and traditions as they sought their view or way of life through nature. The songs, dances, chants, rituals and other activities shown during the Kahimunan are all in oneness with nature, invoking their deities, ancestors and nature spirits.



CHAPTER IX POLICIES FOR ENVIRONMENTAL PROTECTION

Section 15. ENVIRONMENTAL PROTECTION- In order to protect the environment of Carmen, it basically adopts the principle of "No-to-Mining Policy," and in furtherance thereof, the policies and regulations shall be implemented as follows:

- a. No person shall engage in activities that are destructive of environment and or extract mineral and forest resources within the territorial jurisdiction of Carmen.

Section 16. REQUIREMENT FOR APPLICANTS FOR MARRIAGE LICENSE- All applicants for marriage license are required to plant twenty (20) seedlings within the designated area identified by the Municipal Environment and Natural Resources Office, as provided in a Municipal Ordinance of the Municipality.

Section 17. ANNUAL CONDUCT OF ARBOR DAY CELEBRATION- All LGU Elected Officials and employees, the DepEd Personnel and other stakeholders are required to plant trees in the area designated by the MENRO.

Section 18. CUTTING OF FRUIT BEARING TREES- Cutting of fruit bearing trees within the Municipality of Carmen is regulated.

Section 19. CUTTING OF DECADE- OLD TREES- Cutting of decade-old trees which are found in the mountainous areas of the Municipality of Carmen, Surigao del Sur is prohibited. They can be considered as part of the cultural heritage tourism of the municipality.

Section 20. BURNING OF RICE STRAWS- Burning of rice straws by any person in any rice fields of Carmen, Surigao del Sur is prohibited.

Section 21. THROWING OF GARBAGE- Throwing of garbage of any kind in any place in Carmen is prohibited. Every household is mandated to adhere to waste segregation and proper disposal.

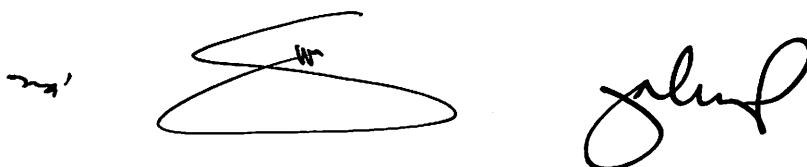
CHAPTER X TOURIST/TREK GUIDES

Section 22. REGISTRATION OF TOURIST/TREK GUIDES-

- a. All applicants or those who wish to be tourist/trek guides should register first at the Municipal Tourism Office.
- b. No person should act as tourist/trek guide at the different tourist destinations in Carmen, Surigao del Sur without registering first at the Municipal Tourism Office of this municipality.

Section 23. SCREENING OF TOURIST/TREK GUIDES- All applicants shall be screened by the Municipal Tourism Office before he/she will be registered formally for purposes of endorsement to the Department of Tourism, Regional Office through the Provincial Tourism Office for appropriate and professionalized tour/trek guiding trainings.

Section 24. ACCREDITATION OF TOUR/TREK GUIDES- Upon completion of the required professionalized trainings conducted by the Department of Tourism on Tour/Trek Guiding, the personnel shall, upon recommendation by the Municipal Tourism Office through the Municipal Tourism Council, endorse the list to the Provincial Tourism Office for accreditation with the Department of Tourism, Regional Office.



Section 25. REQUIREMENTS FOR REGISTRATION-

- a. Birth Certificate
- b. Recommendation from the Barangay Captain of his/her barangay
- c. Barangay Clearance
- d. Police Clearance
- e. Biodata/Resume

Section 26. ISSUANCE OF TOURIST/TREK GUIDE CERTIFICATE-

- a. The Tourist/Trek Guide Certificate shall be issued by the Municipal Tourism Council to be signed by the Chairman of said Council and approved by the Municipal Mayor.
- b. The Tourism/Trek Guide Accreditation Certificate shall be issued by the Provincial Tourism Office after the applicants shall have passed the screening, training, evaluation and accreditation with the DOT.

**CHAPTER XI
ACCOMMODATION ESTABLISHMENTS**

Section 27. ACCOMMODATION HOUSES- The Municipality of Carmen, Surigao del Sur is now on its heights to be one of the tourist destinations of the Province of Surigao del Sur. To accommodate visiting tourists especially in the tourism areas of the town, there shall be rules and regulations to be followed by operators of accommodation establishments in the locality.

Hereunder, are considered accommodation houses, to wit:

- a. Homestay
- b. Pension House
- c. Hotel
- d. Apartelle
- e. Resort
- f. Mabuhay Accommodation

Section 28. ALL OWNERS/OPERATORS OF HOMESTAY- Pension House, Hotel, Apartelle and resort are encouraged to comply with the DOT standards for purposes of DOT accreditation.

Section 29. ALL ACCOMMODATION HOUSES- shall have decent and clean rooms for accommodation purposes.

Section 30. A HOMESTAY- shall have a clean comfort rooms and bathrooms for the comfort of the visitors/tourists.

Section 31. ALL OWNERS/OPERATORS- of accommodation houses shall install at least one (1) big fire extinguisher or enough fire extinguishers in their respective establishments for prevention purposes.

Section 32. ALL ACCOMMODATION HOUSES- to be constructed or established shall, before obtaining a building permit from the Municipal Engineering Office, be inspected by the latter as to the room measurements and other standard requirements as prescribed by the DOT.

Section 33. ALL OWNERS/OPERATORS- of accommodation establishments shall undergo a seminar to be conducted by the Provincial Tourism Office through the Municipal Tourism Council.

Section 34. A HOTEL AND A RESORT- shall have a parking area in their respective establishments.



Section 35. ALL PERSONNEL OF THE ACCOMMODATION- houses shall be registered at the Office of the Municipal Mayor thru the Municipal Tourism Office.

Section 36. ALL PERSONNEL OF THE ACCOMMODATION HOUSES- shall be required to obtain a Sanitary Permit from the Municipal Health Office to ensure a sound mind and a healthy body for they will be dealing with persons in their establishments.

Section 37. A BEACH OR RIVER RESORT OPERATOR/OWNER- shall employ life guards to ensure the safety of the visitors/tourists especially when they go on swimming at the beach, river or in the swimming pool.

Section 38. ALL ACCOMMODATION- establishments and their surroundings shall maintain cleanliness for sanitation purposes.

Section 39. ALL OPERATORS/OWNERS OF ACCOMMODATION HOUSES- shall follow the provisions of the Solid Waste Management and Disposal System of the LGU-Carmen, Surigao del Sur.

CHAPTER XII
SOUVENIR SHOP/DISPLAY CENTER/STALL AND FOOD ESTABLISHMENT

Section 40. SOUVENIR SHOPS/DISPLAY CENTERS, STALL AND FOOD ESTABLISHMENTS- may be established by the private sectors through the Business Club of the Municipality, provided they have faithfully complied with the laws, DOT rules and regulations as adopted by the Local Government Unit:

- a. Souvenir Shops/Display Center, Stall and Food Establishment owner shall maintain its cleanliness and follow the rules and regulations of the LGU.
- b. The owners of Souvenir Shops, display centers, stall and food establishments/local caterers shall employ food handlers properly trained by the Municipal Health Office.

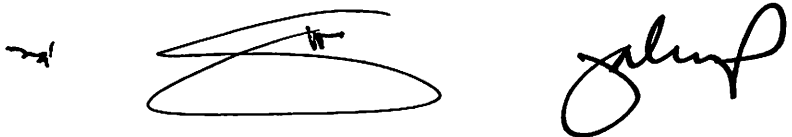
CHAPTER XIII
NUISANCES

Section 41. NUISANCES- Noise-making revelries and drinking sprees at any of the tourist destinations of the municipality, souvenir shops, display centers, stall, food establishments are regulated as follows:

- a. Audio- amplified machines such as stereos, karaokes, videokes, cassettes, radio players and similar musical instruments shall not be allowed to play beyond the normally accepted modulation.
- b. Shouting aloud is strictly prohibited especially at the Hubason River Resort and Adventure Trail.
- c. Prolong blowing of vehicles horn is prohibited at any of the tourist destinations of the municipality.

CHAPTER XIV
TOURISM PROMOTIONS AND DEPARTMENT OF TOURISM (DOT) COMPLIANCE

Section 42. TOURISM PROMOTIONS- There shall be tourism promotions to be initiated by the Municipal Tourism Office with the assistance of the Municipal Tourism Council of the LGU Carmen, Surigao del Sur.



- a. The Municipal Tourism Council shall recommend to the Sangguniang Bayan the mechanics to promote the tourism industry of Carmen, Surigao del Sur for a full operation.
- b. All kinds of information shall be used and implemented for the tourism information here and abroad.
- c. There shall be Barangay Tourism Council organized by the Municipal Mayor's Office, through the Municipal Tourism Office to ensure compliance with the DOT Standards on the personality development and Customer Service of their respective personnel.
- d. Incorporate Mabuhay gestures by making it mandatory to all personnel of tourism- related establishment operating within the Municipality.

Section 43. FUNCTIONS OF MUNICIPAL TOURISM OFFICE- The Municipal Tourism Office shall see to it that the standards imposed by the Department of Tourism shall have been complied with by all tourism related establishments in the Municipality.

In view of this, the Municipal Tourism Office shall:

- a. Assist in the accreditation of all the primary tourism- related establishments of the Municipality.
- b. Maintain and manage records of tourism-related data submitted by Tourism-Related Enterprises (TREs) and other relevant sources. Such records shall support tourism planning, development and reporting requirements of the Local Government Unit.
- c. Maintain an inventory of tourism resources within the Municipality, including TREs, tourist attractions, facilities, and other tourism assets.
- d. Collect and/or receive the submission of all tourism- related establishments operating within the municipality their monthly- tourism related data.
- e. Designate a Tourism Statistics Focal Person to consolidate the data submitted by all tourism- related establishments within the Municipality.
- f. Submit Monthly Reports on Statistics of Tourist Arrivals to the Provincial Tourism Office on or before the 9th day of the succeeding month.

Section 44. SUBMISSION OF DATA- All Primary Tourism-Related Establishments (TREs) operating within the Municipality such as accommodation establishments and resort owners, shall submit their monthly tourism- related data to the Municipal Tourism Office. Such data may include, but not limited to, accommodation establishment inventory data, monthly accommodation reports, workforce and employment data, convention and special data, same- day visitor record, tourist arrival- both foreign and locals, guest occupancy and other tourism statistics as may be required by the Municipal Tourism Office.

Section 45. GUIDELINES AND TEMPLATES- In furtherance of the immediately preceding section, the Municipal Tourism Office shall provide guidelines and templates to all tourism- related establishments operating within the Municipality.

Section 46. OTHER FUNCTIONS- Perform such other functions necessary for tourism development, sustainability and promotions of the LGU.



**CHAPTER XV
MUNICIPAL TOURISM COUNCIL**

Section 47. MUNICIPAL TOURISM COUNCIL- It is a local advisory body created through an Executive Order issued by the Municipal Mayor composed of representatives from the Municipal Government, tourism stakeholders, and community sectors that helps formulate policies, recommend programs, coordinate tourism development initiatives, and support the promotion and sustainable management of tourism in the Municipality in accordance with national tourism policies.

Section 48. CORE FUNCTIONS OF THE MUNICIPAL TOURISM COUNCIL-The Core Functions of the Municipal Tourism Council are as follows:

- a. Advise the LGU on tourism plans, policies, and programs
- b. Assist in tourism promotion and marketing
- c. Coordinate with tourism establishments, community groups and DOT
- d. Support sustainable tourism development and destination management

**CHAPTER XVI
INSTITUTIONAL AND REGULATORY FRAMEWORK FOR
TOURISM DESTINATIONS**

Section 49. TOURISM DESTINATION OPERATED BY THE LGU AND BARANGAY- No tourism destination operated by the LGU or the barangay shall commence operations unless a specific Ordinance governing such destinations had been duly enacted by the Sangguniang Bayan/Sangguniang Pambarangay, together with its corresponding Implementing Rules and Regulations (IRR), especially on the collection of fees and provide penalties for any violation of any of the provisions thereof.

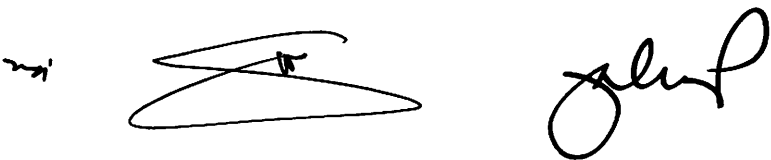
**CHAPTER XVII
PENAL PROVISIONS**

Section 50. PENALTIES- In the absence of any specific penalty for every section as provided and/or should there be no penalty provided in the specific Ordinance in a specific government-operated tourism-related establishment, the provisions of this Code applies suppletorily. Any violation thereof shall be penalized as follows:

- | | | |
|---|---|---|
| FIRST OFFENSE | - | a fine of One Thousand Pesos (Php1,000.00) |
| SECOND OFFENSE AND
SUCCEEDING OFFENSES | - | a fine of Two Thousand Pesos (Php2,000.00) or imprisonment of not less than five (5) days and not more than fifteen (15) days or both at the discretion of the court. |

**CHAPTER XVIII
IMPLEMENTATION**

Section 51. IMPLEMENTING AUTHORITY- The Municipal Tourism Office, Municipal Tourism Council, MPDC, Municipal Health Office, Municipal Engineering Office, MENRO and the PNP Office are hereby mandated and tasked as the lead agencies to implement and enforce this Code.



**CHAPTER XIX
FINAL PROVISIONS**

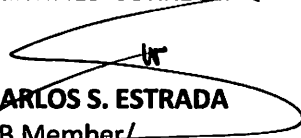
Section 52. SEPARABILITY CLAUSE- If for any reason, any part of this Code shall be held to be unconstitutional or invalid, other parts or provisions hereof which are not affected shall continue to be in full force and effect.

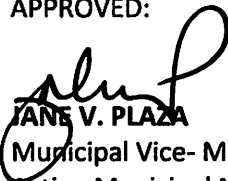
Section 53. EFFECTIVITY- This Ordinance shall take effect immediately upon approval

ENACTED this 5th day of May 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:

CARLOS S. ESTRADA
SB Member/
Acting Municipal Vice- Mayor/
Presiding Officer

APPROVED:

JANE V. PLAZA
Municipal Vice- Mayor/
Acting Municipal Mayor
5/11/2026